

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Esme Trontz	Team: Squad #07	CCRB Case #: 202005333	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 07/16/2020 11:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 120
Date/Time CV Reported Thu, 07/16/2020 12:22 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/29/2020 11:49 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Genaro Barreiro	308	950050	WARRSEC
2. Officers			
3. An officer			
4. DT3 Carlos Corporan	3305	948813	WARRSEC
5. DT3 Edgardo Diaz	3306	948883	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT2 Michael Mendez	06138	904561	120 DET
2. SDS Anthony Alfano	00705	898892	120 DET
3. POM Cory Pilzer	09302	953254	120 PCT
4. POM Angelo Fallacaro	21598	959624	120 PCT
5. POM Cole Lee	14240	966158	120 PCT
6. POM Donato Juliano	05282	952909	120 PCT
7. POM Michael Kirchhoffer	15215	956023	120 PCT
8. POF Stephanie Gonzalez	03749	964023	120 PCT
9. POF Tiffany Behan	14661	937365	120 PCT
10. POM James Krebs	06991	952951	120 PCT
11. POM Hiram Martinez	20667	967990	120 PCT
12. POM Nicholas Romano	17949	961199	120 PCT
13. POM Auron Capa	13111	965966	120 PCT
14. POM Noor Rahman	04612	954256	120 PCT
15. SGT Frank Muirhead	04078	945260	120 PCT
16. POM Andrew Collette	29827	967012	120 PCT
17. POM Joseph Bruno	16433	957407	120 PCT
18. LT Kevin Levenstein	00000	948070	120 PCT
19. SGT Steven Esposito	04168	950387	120 PCT
20. POM Joseph Innocente	14311	956761	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
21. POM Vincent McLaughlin	04409	959809	120 PCT
22. POM Mario Avenoso	16221	957343	120 PCT
23. POF Vanessa Sherlock	15588	944655	120 PCT
24. POM William Dawson	02588	955858	120 PCT
25. POM Matthew Panik	06368	961064	120 PCT
26. SGT James Argenziano	00114	953640	120 PCT
27. SGT Michael Sena	05138	924477	WARRSEC
28. DT3 Sherrod Stuart	05539	952271	WARRSEC
29. SGT Mark Brinadze	00850	948309	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Edgardo Diaz	Abuse: Detective Edgardo Diaz entered § 87(2)(b) § 87(2)(b) in Staten Island.	A . Exonerated
B . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan entered § 87(2)(b) § 87(2)(b) in Staten Island.	B . Exonerated
C . DT3 Genaro Barreiro	Abuse: Detective Genaro Barreiro entered § 87(2)(b) § 87(2)(b) in Staten Island.	C . Exonerated
D . DT3 Edgardo Diaz	Force: Detective Edgardo Diaz pointed his gun at § 87(2)(b) § 87(2)(b)	D . Exonerated
E . DT3 Carlos Corporan	Force: Detective Carlos Corporan pointed his gun at § 87(2)(b) § 87(2)(b)	E . Exonerated
F . DT3 Genaro Barreiro	Force: Detective Genaro Barreiro pointed his gun at § 87(2)(b) § 87(2)(b)	F . Exonerated
G . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b) § 87(2)(b)	G . Unfounded
H . Officers	Force: Officers used physical force against § 87(2)(b) § 87(2)(b)	H . Unfounded
I . An officer	Force: An officer restricted § 87(2)(b) § 87(2)(b)'s breathing.	I . Unfounded
J . Officers	Abuse: Officers did not obtain medical treatment for § 87(2)(b) § 87(2)(b)	J . Unfounded

Case Summary

§ 87(2)(b) filed this complaint with IAB on July 16, 2020 on behalf of the victim, § 87(2)(b). It was received by the CCRB on July 29, 2020 via IAB log § 87(2)(b).

On July 16, 2020, § 87(2)(b) was inside § 87(2)(b) in Staten Island when Detectives Edgardo Diaz, Genaro Barreiro, and Carlos Corporan, all from the Staten Island Warrant Squad, entered the apartment (**Allegations A, B, C: Abuse of Authority- Entry of Premises, § 87(2)(g)**). The Detectives pointed their guns toward § 87(2)(b) (**Allegations D, E, F: Force- Gun Pointed, § 87(2)(g)**). One officer allegedly said to § 87(2)(b) “Get on the fucking floor,” while they pointed their gun at him (**Allegation G: Discourtesy- Word, § 87(2)(g)**). § 87(2)(b) allegedly got down onto the floor and laid on his stomach with his arms up, after which multiple officers allegedly pushed § 87(2)(b) all over his arms for a few seconds. (**Allegation H: Force- Physical Force, § 87(2)(g)**). An officer then allegedly pressed on the back of § 87(2)(b) neck for a couple seconds, which somewhat restricted his breathing (**Allegation I: Force- Restricted Breathing, § 87(2)(g)**). One officer cuffed § 87(2)(b) and took him out to the apartment. Once outside, § 87(2)(b) allegedly requested medical attention from officers, but no officer provided it for him (**Allegation J: Abuse of Authority- Refusal to Provide Medical Attention, § 87(2)(g)**). § 87(2)(b) was arrested for § 87(2)(b).

21 BWC videos from 120th Precinct officers were obtained that did not capture § 87(2)(b) apprehension. The Warrant Squad was not equipped with BWC at the time of the incident. The investigation also obtained a video § 87(2)(b) posted on Facebook Live that showed § 87(2)(b) in handcuffs (Board Review #01).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Edgardo Diaz entered § 87(2)(b) in Staten Island.

Allegation (B) Abuse of Authority: Detective Carlos Corporan entered § 87(2)(b) in Staten Island.

Allegation (C) Abuse of Authority: Detective Genaro Barreiro entered § 87(2)(b) in Staten Island.

Allegation (D) Force: Detective Edgardo Diaz pointed his gun at § 87(2)(b)

Allegation (E) Force: Detective Carlos Corporan pointed his gun at § 87(2)(b)

Allegation (F) Force: Detective Genaro Barreiro pointed his gun at § 87(2)(b)

Allegation (G) Discourtesy: An officer spoke discourteously to § 87(2)(b)

Allegation (H) Force: Officers used physical force against § 87(2)(b)

Allegation (I) Force: An officer restricted § 87(2)(b)'s breathing.

Allegation (J) Abuse of Authority: Officers did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) was interviewed via Skype from § 87(2)(b) on August 27, 2020 (Board Review #02). § 87(2)(b) did not respond to contact attempts. § 87(2)(b) who resided at § 87(2)(b)

§ 87(2)(b) was interviewed via telephone on September 9, 2021 (Board Review #03).

Lieutenant Kevin Levenstein was interviewed by the CCRB on April 1, 2021. Detective Diaz was interviewed by the CCRB on June 29, 2021, as was Detective Corporan for related case #§ 87(2)(b).

Detectives Diaz and Corporan testified that they, along with Detective Barreiro, canvassed at § 87(2)(b) on the morning of July 16, 2019 looking for § 87(2)(b) and his brother, § 87(2)(b) who both had active warrants out for their arrests. The detectives received information that the brothers

could be in § 87(2)(b) so they visited that apartment at about 5:30 a.m. § 87(2)(e), § 87(2)(f)

The
detectives left § 87(2)(b) and walked around the complex. § 87(2)(e), § 87(2)(f)

Detective Corporan also testified that at some point, he saw the § 87(2)(b) brothers walking around the complex, after which they split up and ran in different directions. Though Detective Diaz was not certain that those individuals were the § 87(2)(b) brothers, he described observing a similar situation and that he may have gone over the radio to notify other officers of a foot pursuit with a potential firearm involved. This pursuit is likely addressed in EVENT # § 87(2)(b) which numerous officers from the 120th Precinct responded to (Board Review #04).

§ 87(2)(e), § 87(2)(f)

§ 87(2)(g)

§ 87(2)(b) told the officers § 87(2)(b) was inside with her grandson and that they could go inside. She then opened the door for them and they entered. While Detective Diaz testified that § 87(2)(b) came outside the apartment to be cuffed, after which the detectives entered the apartment to find § 87(2)(b) Detective Corporan, § 87(2)(b) and § 87(2)(b) himself all testified that the detectives went in immediately without trying to coax § 87(2)(b) outside and cuffed both § 87(2)(b) and § 87(2)(b) while inside the apartment. Detective Diaz testified that he pointed his gun in front of him toward the back room, “in the direction of the threat,” while he said, § 87(2)(b) let me see your hands, let me see your hands.” He believed § 87(2)(b) had a firearm and was a threat because § 87(2)(f) and the fact that he was not complying in showing his hands or exiting the bedroom. Detective Diaz testified that he holstered his gun once § 87(2)(b) exited the bedroom, after which an officer cuffed him. He did not know whether Detectives Corporan and Barreiro pointed their guns, nor could Detective Corporan remember that. § 87(2)(b) testified that all the officers he saw in the bedroom pointed their guns at him before they cuffed him. Lieutenant Levenstein testified during his interview that he never went inside § 87(2)(b) and that the only time he saw § 87(2)(b) was from 15 to 20 feet away after he was cuffed; § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) alleged that while one officer pointed his gun at him, they said, “Get on the fucking floor.” He got down onto the floor and laid on his stomach with his arms up, after which multiple officers pushed him all over his arms for a few seconds. An officer then pressed on the back of § 87(2)(b) neck for a couple seconds, which somewhat restricted his breathing. Detectives Corporan and Diaz both testified that one of them cuffed § 87(2)(b) while he was standing, and no force was used to do so. They also both testified that § 87(2)(b) was never on the floor and that no officer touched the back of § 87(2)(b) s neck. § 87(2)(b) also testified that § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) were cuffed standing up and that the officers did not seem to have any trouble apprehending them. Detectives Corporan and Diaz both denied saying, “get on the fucking floor,” and § 87(2)(b) did not hear any officer say “get on the fucking floor” or use any other profanity.

§ 87(2)(b) alleged in her initial complaint that before placing § 87(2)(b) in the police vehicle, officers “beat him up.” § 87(2)(b) himself testified that no officers made physical contact with him outside. § 87(2)(b) also alleged that § 87(2)(b) requested medical attention from officers, but no officer provided it for him; § 87(2)(b) testified that he was not injured during the incident. The Facebook Live video from § 87(2)(b) shows § 87(2)(b) appearing to walk normally and without any injuries (Board Review #01). Detective Corporan testified that § 87(2)(b) did not sustain any injuries and did not complain about pain, and Detective Diaz testified that § 87(2)(b) never requested medical attention. The available BWC footage from 120th Precinct officers does not show § 87(2)(b) apprehension, nor does it show him clearly after he was cuffed.

New York courts have ruled that officers may enter premises without a warrant if clear and informed consent to enter is given. In *People v. Satornino*, 153 A.D.2d 595 [1989], officers were justified in entering an apartment after the defendant’s mother told officers her son was inside, opened the door for the officers, and pointed to the bedroom that her son was staying in (Board Review #05). Patrol Guide Procedure 221-01 allows officers to use the minimum amount of force necessary to take an individual into custody and to protect human life (Board Review #06). The factors that determine reasonability include the actions taken by the subject, the immediacy of the perceived threat, and the subject’s violent history. This procedure also notes that an officer’s decision to draw or display a firearm must be based on articulable belief that a potential threat of serious physical injury is imminent. The officer must secure his gun once the threat no longer exists.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Civilian and Officer CCRB Histories

- This is the third complaint in which § 87(2)(b) has been named a victim (Board Review #07).
 - § 87(2)(b)
- Detective Barreiro has been a member-of-service for 10 years and has been named a subject in 15 CCRB cases and 29 allegations, none of which were substantiated. § 87(2)(g)
- Detective Diaz has been a member-of-service for 11 years and has been named a subject in eight CCRB cases and 21 allegations, none of which were substantiated. § 87(2)(g)
- Detective Corporan has been a member-of-service for 11 years and has been named a subject in five CCRB cases and 15 allegations, of which two were substantiated.
 - 201710171 involved substantiated allegations of entry and search of premises. The Board recommended formalized training and the NYPD imposed formalized training.
 - § 87(2)(g)

- Detective Barreiro has been a member-of-service for 10 years and has been named a subject in 15 CCRB cases and 29 allegations, none of which were substantiated. § 87(2)(g)
- Detective Diaz has been a member-of-service for 11 years and has been named a subject in eight CCRB cases and 21 allegations, none of which were substantiated. § 87(2)(g)
- Detective Corporan has been a member-of-service for 11 years and has been named a subject in five CCRB cases and 15 allegations, of which two were substantiated.
 - 201710171 involved substantiated allegations of entry and search of premises. The Board recommended formalized training and the NYPD imposed formalized training.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- The NYC Office of the Comptroller found that, as of November 1, 2021, no Notices of Claim had been filed regarding this complaint (Board Review #08).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 7

Investigator:	<u>Esme Trontz</u>	<u>Inv. Esme Trontz</u>	<u>11/10/21</u>
	Signature	Print Title & Name	Date

Squad Leader: _____ Manager Vanessa Rosen November 10, 2021

Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____